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Case Number: 24PSCV04358 Hearing Date: June 25, 2026 Dept: H

Abelar v.

Signature Flooring, et al.,

Case No. 24PSCV04358

ORDER ON MOTION

FOR SUMMARY JUDGMENT

Defendant Signature Flooring,

Inc.'s Motion for Summary Judgment, or Alternatively for Summary Adjudication
is DENIED in full.

Background

Plaintiffs Victor Manuel Abelar and Jacob Abelar, a
minor, by and through his Guardian Ad Litem, Hilda Rebecca Avila (together,
"Plaintiffs") allegedly sustained injuries and damages in a December 29, 2022
motor vehicle collision on Holt Avenue in Pomona.

On December 18, 2024, Plaintiffs filed a complaint,
asserting a cause of action for Negligence/Negligence Per Se against Signature
Flooring, Inc. ("SFI"), Alfredo Ruben Nava Perez ("Perez"), Blanca E. Nava ("Nava")
and Does 1-50.

A Case Management Conference is set for June 25,
2026.

Legal

Standard

The

purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v.

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil

Procedure section 437c, subdivision (c), requires

the trial judge to grant summary judgment if all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Adler v. Manor Healthcare Corp.

(1992) 7 Cal.App.4th 1110, 1119 [quotations omitted; emphasis theirs].)

“On a

motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.)

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defendant or cross-defendant moving for summary judgment or summary adjudication “has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

Once that burden has been met, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.)

Discussion

SFI

moves the Court, pursuant to Code of Civil Procedure section 437c, for summary judgment in its favor and against Plaintiffs on Plaintiffs’ complaint; alternatively, SFI seeks summary adjudication as follows:

Issue

No. 1: SFI has no liability to Plaintiffs under the First Cause of Action for

Negligence because there is no evidence to support (1) that SFI was independently negligent as it did not own, operate or entrust the vehicle involved in the Subject Incident or (2) that it was vicariously liable for Perez's alleged negligent acts because Defendant Perez was not acting in the course and scope of employment/agency with SFI at the time of the subject incident and no exceptions apply.

Issue

No. 2: SFI has no liability to Plaintiffs under the Negligence Per Se allegations because Negligence Per Se is not its own cause of action and because there is no evidence to support that Perez was acting in the course and scope of employment/agency with SFI at the time of the subject incident and no exceptions apply.

Evidentiary

Objections

The

Court rules on Plaintiffs' evidentiary objections as follows: Overruled as to Nos. 1-5 and 7-17 and Sustained as to No. 6.

The

Court notes that Plaintiffs' evidentiary objections Nos. 4, 5, 7, 8, 11, 17, and 18 reflect non-compliance with California Rules of Court Rule 3.1354, subdivision (b)(3) (i.e., each written objection must "[q]uote or set forth the objectionable statement or material"). Plaintiffs purport to quote statements from Grimsley's declaration in sections entitled "Material Objected To," but the quoted statements are inaccurate. For instance, Objection No. 4, made to "paragraphs 13 through 15," asserts that the "Material Objected To" reads as follows: "On December 29, 2022, Perez was dispatched by the Union to Defendant SFI's construction project location at Los Alisos Intermediate School . . . from approximately 6 a.m. to 2:30 p.m." Paragraph 13 actually reads as follows: "On the date of the Subject Incident, Perez was dispatched to Defendant SFI's construction project location at Los Alisos Intermediate School . . . from approximately 6 a.m. to 2:30 p.m., whereas Paragraph 14 reads that "[a]ttached as Exhibit B to the Appendix of Exhibits is a true and correct redacted copy of Perez's timecards for his dispatch work with Defendant SFI from the week of December 12, 2022, through January 1, 2023. These are kept in the normal course of business for all dispatch workers as well as employees, and I personally have access to these timecards" and Paragraph 15 reads that "[o]n the date of

the Subject Incident, Perez 'clocked out' at approximately 2:30 p.m., and left Defendant SFI's construction project location at Los Alisos Intermediate School." The Court overrules Plaintiffs' evidentiary objections on this basis.

Further, the Court overrules Plaintiffs' evidentiary objections set forth in their opposing separate statement as improper. "[A] separate statement is not evidence; it refers to evidence submitted in support of or opposition to a summary judgment motion. (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 178, fn. 4 [emphasis theirs]; Cal. Rules of Court, rule 3.1354(b) ["objections must not be restated or reargued in the separate statement"].)

The Court rules on SFI's evidentiary objections as follows: Sustained as to Nos. 1-3 and 5-7 and Overruled as to Nos. 4 and 8.

Merits

On December 18, 2024, Plaintiffs filed a complaint against SFI, Perez, and Nava for Negligence/Negligence Per Se. Plaintiffs have alleged that they sustained injuries and damages arising from a motor vehicle accident that occurred on December 29, 2022 at approximately 5:06 p.m. on Holt Avenue in Pomona (Goodman Decl., ¶ 5, Exh. D, ¶ 1); that Perez, who was driving a 2004 black Chevrolet Silverado ("Subject Vehicle"), made an unsafe left turn and crashed into the front of Plaintiffs' vehicle (Id., ¶¶ 1 and 3); that Perez was operating the Subject Vehicle in the course and scope of his employment and/or agency for SFI at the time of the accident (Id., ¶ 4); and that Nava was the registered owner of the subject vehicle (Id., ¶ 5). The sole theory of liability asserted against SFI is that of vicarious liability for Perez's negligence. (Id., ¶ 4.) [FN1]

"An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff." (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 673.) "[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence." (Millard

v. Biosources, Inc. (2007) 156 Cal.App.4th 1338, 1353, fn. 2.)

“Under the theory of respondeat superior, employers are vicariously liable for tortious acts committed by employees during the course and scope of their employment.” (Lobo v. Tamco (2010) 182 Cal.App.4th 297, 301.) “Generally, whether an employee is within the scope of employment is a question of fact; however, when the facts of a case are undisputed and conflicting inferences may not be drawn from those facts, whether an employee is acting within the scope of employment is a question of law.” (Blackman v. Great American First Savings Bank (1991) 233 Cal.App.3d 598, 602.)

At the outset, the Court observes that SFI appears to be disputing the existence of any employment relationship whatsoever between SFI and Perez, via material fact no. 10 (i.e., that “Perez was never directly hired by Defendant SFI or treated as an employee by Defendant SFI at any time”). The evidence SFI proffers in this regard, however, is partially objectionable (i.e., as to Paragraph 9 of Grimsley’s declaration) and is otherwise deficient, in that it is limited to how many times Perez was allegedly dispatched to SFI in certain years and to the fact that SFI never hired Perez as, or tasked him with fulfilling the duties of, a driver. (See Grimsley Decl., ¶¶ 8, 10-12, 16 and 17.) [FN2] At any rate, Plaintiffs have proffered evidence that Perez was an employee of SFI on the date of the motor vehicle accident. (See Sedrish Decl., ¶ 3, Exh. 2, 48:14-19; ¶ 4, Exh. 3, 29:8-12.) Further, it is undisputed that “[i]n or around May 1, 2022, Defendant SFI entered into a Master Agreement with Painters and Allied Trades District Council No. 36 of The International Union of Painters and Allied Trades AFL CIO Resilient Floor and Decorative Covering Local Union No. 1247” [“Agreement”]. (UMF No. 1.) SFI acknowledges that Perez was a member of the Union and dispatched to SFI pursuant to the aforesaid Agreement. (Grimsley Decl., ¶ 8.)

Moving on, employers “are generally exempt from liability for tortious acts committed by employees while on their way to and from work” under the “going and coming rule,” “because employees are said to be outside of the course and scope of employment during their daily commute.” (Lobo, 182 Cal.App.4th at 301). It is undisputed here that the motor vehicle accident occurred while Perez was driving home. (UMF No. 8.) [FN3]

That said, there are exceptions to the “going and coming” rule, including the vehicle-use exception, the incidental benefit exception and the special-errand exception. (Felix v. Asai (1987) 192 Cal.App.3d 926; Pierson v. Helmerich & Payne Int’l Drilling Co. (2016) 4 Cal.App.5th 608.) SFI asserts that none of the foregoing exceptions apply, whereas Plaintiffs assert that all three exceptions apply.

The Vehicle-Use Exception

One exception to the going-and-coming rule is the vehicle-use exception. “The ‘required-vehicle exception’ covers situations where there is an express or implied employer requirement. If an employer requires an employee to furnish a vehicle as an express or implied condition of employment, the employee will be in the scope of his employment while commuting to and from the place of his employment. (Pierson, supra, 4 Cal.App.5th at 625 [internal quotations and citation omitted].) “The portion of CACI No. 3725 addressing an employer requirement states: ‘[I]f an employer requires an employee to drive to and from the workplace so that the vehicle is available for the employer’s business, then the drive to and from work is within the scope of employment. The employer’s requirement may be either express or implied.’” (Id.)

SFI proffers a declaration from Grimsley, who attests that SFI never required Perez to have his own vehicle, never required Perez to use or have a vehicle as a condition for any dispatch work and did not require Perez to drive any vehicle to his dispatch work. (Grimsley Decl., ¶ 18.) Grimsley further attests that, on the date of the motor vehicle accident, SFI did not pay Perez for his time commuting to and from SFI’s job site, that SFI has never paid any portion of Perez’s automobile liability use insurance premiums or paid for his car registration, that Perez’s driving performance was not evaluated in his performance reviews by SFI, that SFI has never reimbursed Perez for getting his driver’s license renewed, and that Perez did not have an assigned parking spot or a parking spot at SFI’s job site. (Grimsley Decl., ¶¶ 25-30.) The Court determines that SFI has met its initial burden and that the burden has shifted to Plaintiffs to show the existence of a triable issue of material fact as to whether the vehicle-use exception applies.

The Court determines

that Plaintiffs have met their burden. Plaintiffs have proffered the Agreement, Section 6 of which provides as follows: "Workers Must Have Tools of the Trade. All workers who report for work must have the appropriate tools of the trade for the craft for which the worker is reporting. All workers must have and maintain the required tools at their own expense. A list of appropriate tools of the trade is set forth in Appendix C to this Agreement." (Goodman Decl., ¶ 2, Exh. A, Section 6 and Appendix 6.) Plaintiffs have also proffered Perez's deposition transcript, in which he testified, inter alia, that the Union and SFI required him to bring his own tools to the jobsite (Sedrish Decl., ¶ 2, Exh. 1, 45:18-25), that his truck was his "personal tool" to do his job at SFI (Id., 66:15-24), and that he could not do his job using public transportation (Id., 72:16-18). Plaintiffs have proffered the deposition transcript of SFI Supervisor Jaime Padilla ("Padilla"), who testified that SFI expected Perez to report to jobsites fully equipped (Id., ¶ 3, Exh. 2, 105:11-13), that he used his own truck to do his job when he was a floor installer (Id., 106:22-24), that it was assumed that his truck was required to do his floor installer job when he worked as one (Id., 106:22-107:2), that he felt when he was a floor installer that he couldn't do his job without his truck (Id., 107:3-6), and that vehicle use is a necessary and expected part of a floor installer's job (Id., 111:7-9).

The

Incidental Benefit Exception

Another

exception to the going-and-coming rule is the incidental benefit exception, which "is based on the part of CACI No 3725 that states: 'The drive to and from work may . . . be within the scope of employment if the use of the employee's vehicle provides some direct or incidental benefit to the employer. There may be a benefit to the employer if (1) the employee has agreed to make the vehicle available as an accommodation to the employer, and (2) the employer has reasonably come to rely on the vehicle's use and expects the employee to make it available regularly.' (CACI No. 3725). The 'agreement may be either express or implied.' (CACI No. 3725. . .)." (Pierson, supra, 4 Cal.App.5th at 629.)

SFI again

proffers the declaration from Grimsley, who attests that on the date of the motor vehicle accident, SFI did not require Perez to transport any work materials to and/or from any job site or to take any work material home and that SFI has

designated and regular employees who physically transport any necessary work materials. (Grimsley Decl., ¶¶ 20, 21, and 23.) Even assuming that the foregoing evidence is sufficient for SFI to meet its initial burden, the Court determines that Plaintiffs have met their burden of showing the existence of a triable issue of material fact as to whether the incidental benefit exception applies. Plaintiffs have proffered Perez's deposition transcript, in which he testified that he sometimes

picked up materials to install the floors for SFI jobs (Sedrish Decl., ¶ 2, Exh. 1, 33:10-35:4, 48:5-9 and 54:17-55:10), that he picked up materials from the shop and brought them to the jobsite on the morning of the motor vehicle accident (Id., 38:14-18, 60:8-11), and that he needed his truck throughout the workday to travel between jobsites (Id., 71:8-21 and 100:20-101:14). Plaintiffs have also proffered Padilla's deposition transcript, in which he testified that he has had installers travel to different jobsites on one day (Sedrish Decl., ¶ 3, Exh. 2, 37:9-38:7 and 105:14-106:16), that SFI benefits from floor installers having their own transportation so they don't have to provide them with transportation to jobsites (Id., 107:21-108:1), that installers having their own transportation allows SFI to assign jobs in multiple counties throughout California (Id., 108:3-24), and that SFI is benefitted by not having to provide vehicles and tools (Id., 110:6-12).

The
Special-Errand Exception

Finally,

"[t]he

special errand doctrine . . . states an employee is within the scope of his employment while coming from home or returning to it while on a special errand either as part of his regular duties or at a specific order or request of his employer." (Blackman, supra, 233 Cal.App.3d at 602.) For instance, an example of the special-errand exception "would be where an employee goes on a business errand for his employer leaving from his workplace and returning to his workplace. Generally, the employee is acting within the scope of his employment while traveling to the location of the errand and returning to his place of work." (Felix v. Asai (1987) 192 Cal.App.3d 926, 931-932.) "The exception also may be applicable to the employee who is called to work to perform a special task for the employer at an irregular time. The employee is within the scope of his employment during the entire trip from his home to work and back to his home." (Id. at 932.) "The exception is further applicable where the employer asks an employee to perform a special errand after the employee leaves work but before going home. In this case, as in the other examples, the employee is normally within the

scope of his employment while traveling to the special errand and while traveling home from the special errand.” (Id.)

SFI

proffers the declaration of Grimsley, who attests that on the date of the motor vehicle accident, Perez was not performing any special business errand for SFI at any time. (Grimsley Decl., ¶ 22.) The Court determines that SFI has met its initial burden and that the burden has shifted to Plaintiffs to show the existence of a triable issue of material fact as to whether the special-errand exception applies. The Court determines that Plaintiffs have not met their burden. Plaintiffs proffer Perez’s deposition testimony that he “stopped in the morning very early, picked up the materials from the shop, and then brought them to the jobsite.” (Sedrish Decl., ¶ 2, Exh.

1, 38:14-18; 44:6-10; 60:8-11.) Plaintiffs, however, have failed to provide the Court with any case authority applying the special errand exception under the circumstances here, where the special errand was completed on the way to the jobsite and the motor vehicle accident occurred after Perez left the jobsite hours later.

Conclusion

The motion is denied in full.

[FN1] Plaintiffs, in their opposition, confirm that their sole theory of liability against SFI is vicarious liability, as follows: “SFI argues that it cannot be liable because it did not own, operate, or entrust the vehicle and did not personally commit an independent negligent act. That argument misses Plaintiffs’ theory. The issue is not title ownership of the truck. Plaintiffs seek respondeat superior liability for Nava Perez’s negligence. Under California law, an employer may be vicariously liable for an employee’s tort committed within the scope of employment even when the employer itself committed no independent wrongdoing. . .” (Opp., 7:3-9).

[FN2] Paragraph 8, moreover, is based “[u]pon information and belief.” “Statements in a declaration on information and belief are of no evidentiary value.” (Goodman v. Citizens Life & Cas. Ins. Co. (1967) 253 Cal.App.2d 807, 820.)

[FN3] SFI appears to take issue with

the fact that the motor vehicle accident occurred “nearly three hours after Perez clocked out for the day.” (Motion, 4:12-13.) SFI, however, has provided Perez’s response to Form Interrogatory No. 20.3, wherein he confirms that his destination at the time of the motor vehicle accident was home.